

24VECV01479 24VECV01479

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CU%2C07%2F21%2F2026

Source SHA-256: e58ebbce05dc65754e7d32df3da3155364169c84a1cd99a4b57e5f7bae04b25

Case Number: 24VECV01479 Hearing Date: July 21, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

JOSEPH BIRKNER,
an individual, by and through THERESA PARHAM, his guardian ad litem,

Plaintiff,

vs.

LOS ANGELES UNIFIED SCHOOL DISTRICT; and
DOES 1-100, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 24VECV01479

[TENTATIVE] RULING RE: PLAINTIFF'S MOTION
FOR RECLASSIFICATION

Dept. U

8:30 a.m.

July 21, 2026

I.

BACKGROUND

On Sunday, July 9, 2023, 13-year-old Plaintiff

Joseph

Birkner ("Birkner") and two

companions climbed a perimeter fence and trespassed onto a closed middle school campus for the purpose of skateboarding.

During their excursion, Birkner scaled a caged vending machine and used

the vending machine to climb onto the school roof. Unfortunately, while on the roof, the 180-lb.

Birkner walked across a skylight, which broke under Birkner's weight. Birkner fell through the skylight and suffered significant injuries.

On April 2, 2024, Birkner,

by and through Theresa Parham ("Parham"), his guardian ad litem, filed his original

complaint against Defendant Los Angeles Unified School District ("LAUSD").

On

May 28, 2024, Plaintiff filed his first amended complaint against LAUSD, alleging a single cause of action for negligence under Government Code section 835.

On

June 28, 2024, LAUSD filed its answer to the FAC.

Also

on June 28, 2024, Cross-Complainant LAUSD filed its cross-complaint against Cross-Defendants Birkner and Parham, seeking/alleging: (1) total equitable indemnity; (2) partial equitable indemnity; (3) declaratory relief; (4) equitable indemnity-liability of parents and guardians; and (5) relief under Education Code section 48904 (a)(1).

On

August 14, 2024, Cross-Defendants filed their answer to the cross-complaint.

On

November 13, 2025, the Court granted LAUSD's motion for summary judgment as to Plaintiff's FAC.

On

December 2, 2025, the Court entered judgment in favor of LAUSD and against Plaintiff.

On

February 4, 2026, Plaintiff filed his second amended complaint against Defendants LAUSD and John Valencia d/b/a Valen Vending Company ("Valencia"), alleging: (1) negligence under Government Code section 835; and (2) negligence.

On

February 20, 2026, Plaintiff filed his third amended complaint (the "TAC") against Defendant Valencia, alleging a single cause of action for negligence.

On

June 24, 2026, Plaintiff filed his motion to reclassify LAUSD's cross-complaint from an unlimited civil case to a limited civil case.

II.

LEGAL STANDARD

“Whether an action qualifies as a limited or unlimited civil action is determined initially from the prayer or demand for relief in the plaintiff’s complaint. Once classified as limited or unlimited that classification normally continues throughout the litigation. If, however, a matter has been designated as an unlimited action, and yet the amount of controversy is \$25,000 or less, the statutory scheme authorizes ‘reclassification’ of the case as a ‘limited’ action and transfer of the matter to a superior court presiding over such actions.” *Ytuarte v. Superior Court* (2005) 129 Cal.App.4th 266, 274, citing Code Civ. Proc., § 403.040 (a). The jurisdictional minimum was subsequently increased to \$35,000.00. See Code Civ. Proc., §§ 85-86.

III.

DISCUSSION

Plaintiff

moves for an order reclassifying LAUSD’s cross-complaint from an unlimited civil case to a limited civil case.

Plaintiff asserts that LAUSD cannot recover more than \$3,813.33 on the cross-complaint because LAUSD’s separate motion for summary judgment only claims \$3,813.33 in property damage.

Plaintiff argues that it is a legal certainty that LAUSD will recover less than the \$35,000.00 jurisdictional threshold on its cross-complaint, thus reclassification is warranted to avoid empaneling a jury to adjudicate a dispute over \$3,813.33.

In

addition to LAUSD’s cross-complaint, there is separately pending Plaintiff’s TAC against Valencia. The TAC seeks general and special damages resulting from Plaintiff falling through the school roof. The TAC characterizes Plaintiff’s injuries as “serious.” (See, e.g., TAC,

¶ 13.) Plaintiff presents no argument to show that his damages against Valencia as alleged in the TAC are necessarily less than the \$35,000.00 jurisdictional threshold, especially when combined

with the \$3,813.33 in property damage claimed by LAUSD.

Code

of Civil Procedure section 85 provides a mechanism for reclassification where

“[t]he amount in controversy does not exceed thirty-five thousand dollars

(\$35,000).” The statute continues, “As

used in this section, ‘amount in controversy’ means the amount of the demand,

or the recovery sought, or the value of the property, or the amount of the

lien, that is in controversy in the action.”

Code Civ. Proc., § 85 (a).

The

statute plainly states that the amount in controversy is determined by looking

at the entire “action,” not by looking only at a specific pleading. Other authorities reinforce that the overall

scope of the litigation governs classification.

For example, when a cross-complaint filed in a limited civil case causes

the entire action to exceed the limited civil jurisdictional limit, the case

must be reclassified in its entirety as an unlimited civil case. See Code Civ. Proc., § 403.030. In other words, the statutory scheme treats

the entire lawsuit as a single, unified action for purposes of jurisdictional classification.

Because

the apparent value of all claims in this action likely exceeds \$35,000.00,

Plaintiff’s cited authorities provide no grounds for reclassification. Plaintiff’s motion fails to address this issue. The motion is denied.

The

Court notes that Valencia has not yet filed a responsive pleading as to the

TAC. However, Plaintiff appears to be in

contact with Valencia’s attorney, as he is included on the service list

attached to Plaintiff’s motion. By all

appearances, Plaintiff has not abandoned his claim against Valencia. If Plaintiff were to dismiss his claims

against Valencia such that the only remaining claim to be adjudicated in this

case was LAUSD’s claim for property damage in the cross-complaint, the Court might

reconsider its analysis of Plaintiff’s reclassification request. (The Court notes that Plaintiff would still

need to show that his request for reconsideration is timely or that its

untimeliness is excused for good cause.

See Code Civ. Proc., § 403.040.) However,

as it stands, the apparent value of all outstanding claims in this case likely exceeds

\$35,000.00; thus there is no mechanism for reclassification at this time.

IV.

CONCLUSION

Plaintiff

Joseph Birkner's motion for reclassification is DENIED.

The Clerk is ORDERED to give
notice.

DATED: July 21, 2026

Lee

Arian

Judge of the
Superior Court